

**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF MINNESOTA**

JOSEPH KIRCHNER,

Plaintiff,

v.

KEITH ELLISON, in his official capacity as
Attorney General of the State of Minnesota,
Defendant.

Case No. 0:26-cv-02594-LMP-DJF

**PLAINTIFF'S MEET-AND-CONFER
STATEMENT**

Pursuant to Local Rule 7.1(a), I, Joseph Kirchner, certify that I conferred by email with Jamal Zayed, Assistant Attorney General and counsel of record for Defendant, in a good-faith effort to resolve the issues raised by Plaintiff's Motion to Alter or Amend the Judgment under Fed. R. Civ. P. 59(e). I wrote to Mr. Zayed on September 14, 2026, at 5:25 a.m. Central Time, with a copy to Matthew McGuire, Assistant Attorney General, describing the four grounds of the motion and the alternative request for leave to amend, including the request that the Judgment be altered to state that the dismissal is without prejudice, and requesting Defendant's position by 5:00 p.m. Central Time on Tuesday, September 15, 2026. Mr. Zayed responded by email on September 15, 2026, at 10:24 a.m. Central Time, with a copy to Alexandra Roux, Assistant Attorney General, stating that Defendant "will oppose the motion in its entirety."

As a result of the meet-and-confer, the parties do not agree on the resolution of the motion or of any part of it. Defendant's position is that he opposes the motion in its entirety.

Respectfully submitted,

/s/ Joseph Kirchner

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Plaintiff, Pro Se

Dated: September 16, 2026